

#	Case Name	Tentative
49	Ho vs. Chiweenie Ventures, LLC 24-01381102	Motion for Leave to File Cross-Complaint Defendant J.L. Ray Company, Inc.'s ("J.L. Ray") unopposed motion for leave to file a Cross-Complaint is GRANTED. A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). (Code Civ. Proc. § 428.50, subd. (c).) If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (<i>Id.</i>) There is a liberal policy regarding the filing of cross-complaints. Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: "A party against whom a cause of action has been asserted ... may file a cross-complaint setting forth [¶] ... [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) Defendant J.L. Ray's proposed cross-complaint asserts causes of action for implied equitable indemnity, comparative contribution, declaratory relief, breach of written contract, negligence, breach of oral contract, implied contractual indemnity, and express indemnity. (Landau Decl. ¶ 13, Exh. G [Proposed Cross-Complaint].) These claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in Plaintiff's Complaint (ROA 2) and are permissive. (<i>Banerian v. O'Malley</i> (1974) 42 Cal.App.3d 604, 612 ["Except as between plaintiffs and defendants, there is no compulsory cross-complaint in California procedure."].) Defendant J.L. Ray has not unreasonably delayed in seeking leave to file its proposed cross-complaint and no prejudice to any party has been identified. Defendant J.L. Ray shall give notice and file and serve the Cross-Complaint attached as Exhibit A to the Declaration of Lauren A. Landau by June 26th, 2026.
50	Wilson vs. Toyo Suisan Kaisha, Ltd. 26-01546357	Motion to Appear Pro Hac Vice The applications of attorney Joshua R. Harris for leave to appear as counsel pro hac vice for Plaintiff Shakeceyiea Smith individually and as Guardian ad litem on behalf of Z.B., a minor is CONTINUED TO 7/10/2026 at 8:30 AM in this Department to give Mr. Harris time to comply. Moving attorney has failed to comply with Rules of Court, Rule 9.40, subd. (c)(1) and (e). The application is not supported by any proof of service evidencing the application and notice of hearing was mailed on the State Bar, required per Rules of Court, Rule 9.40(c)(1). Furthermore, there is no proof of payment to State Bar as required pursuant to Rules of Court, Rule 9.40(e). Moving attorney to give notice to all parties who have appeared in this action.